FURNT (PRIVATE) LIMITED
versus
FURNIT (PRIVATE) LIMITED
and
REGISTRAR OF COMPANIES N.O

HIGH COURT OF ZIMBABWE
MUSITHU J
HARARE, 26 May 2026 & 29 June 2026

Opposed chamber application-condonation and upliftment of bar

T.R. Mugabe for the applicant.
R. Heally for the 1st respondent.

MUSITHU J:

[1] Before the court is an opposed chamber application for condonation and upliftment of bar which was filed in terms of rule 38(1) of the High Court Rules, 2021. The applicant sought the upliftment of the bar operating against it and condonation for the irregular filing of its notice of opposition and opposing affidavit in case number HCHC592/25. In the event that the application was successful, the applicant also sought to have the notice of opposition and the opposing affidavit admitted as part of the record.

[2] The parties appeared before me on 29 May 2026, and I issued an order dismissing the application for lack of merit. The applicant's counsel wrote to the registrar requesting reasons for my decision. These are they.

Factual Background

[3] The background to the dispute can be traced to the year 2022. On or about 24 August 2022, the first respondent was incorporated in accordance with the laws of Zimbabwe under the name and style "FURNIT (PRIVATE) LIMITED" ("FURNIT"), with entity number 17934/2022. FURNIT is in the furniture and interior design industry.

[4] The first respondent registered the trademark "FURNIT" through the African Regional Intellectual Property Organization under registration number AP/M/2023/005783. Sometime in 2025, the first respondent became aware that the applicant was infringing its trademark and on or about 23 May 2025, a cease-and-desist letter was addressed to the applicant. In response, the applicant through its legal practitioners, indicated that their preliminary

assessment informed them that the first respondent's issue should be directed to the office of the Registrar of Companies.

[5] A company search was conducted, and it was revealed that the applicant was registered under the name "FURNT (PRIVATE) LIMITED" on 29 September 2022 under entity number 20949/2022. The applicant assumed the name "CITEA FURNITURE as a trade name. Notwithstanding the registration of "CITEA FURNITURE", as the assumed name, the applicant was using FURNT as its trading name. On or around 19 September 2025, a letter of demand was addressed to the applicant's legal practitioners, narrating the events between the parties, providing the findings of the company search and demanding a written undertaking that the applicant should apply for a Change of Name at the Companies Registry and to remove the name "FURNT" from any and all public platforms, within three (3) days of receipt of the letter of demand. That request was not complied with.

[6] On 8 October 2025, the first respondent as the applicant filed an application against the applicant and the second respondent herein under HCHC592/25. The application was made in terms of section 25(5) of the Companies and Other Business Entities Act [*Chapter 24:31*] (the COBE), for a category 2 civil penalty order against the applicant herein ordering it to change its name since it was similar to that of the first respondent.

[7] The applicant failed to file opposing papers on time and was barred. This resulted in the applicant filing the present application before this court for condonation and the uplifting of the bar. According to the applicant, it sought to be joined on the IECMS platform, and the request was only granted on 28 October 2025. On 29 October the applicant received a letter from the first respondent advising that the application had been duly served via email on 10 October 2015, and therefore the deadline for filing a notice of opposition was 24 October 2025 and not 27 October 2025 as the applicant's counsel had thought.

[8] In its founding affidavit, the applicant averred that it had good prospects of success on the merits and had every intention to defend the proceedings. The applicant was also of the view that its default was not wilful and not inordinate, and the reasons advanced for the default were genuine and reasonable in the circumstances

[9] The applicant further averred that the notice of opposition and opposing affidavit were filed on time given the computation of the days from the date of physical service of the application. The applicant also averred that there would be no prejudice if the application was granted. The documents were already before this court in the main matter and for the sake of expediency it was prudent that the matter be heard on the merits.

[10] The applicant pointed to the prejudice that it would suffer if its application was disallowed. The prejudice to be suffered was that it would be required to change its name; be liable for a category 2 civil penalty; be liable to pay US$30.00 per day until compliance and bear the costs of suit on a higher scale.

The first respondents' case

[11] In response, the first respondent raised a preliminary point to the effect that the application was fatally defective. The reason was that the applicant had failed to provide two email addresses for service of process as required by the rules of court.

[12] As regards the merits of the matter, the first respondent averred that the applicant had failed to satisfy the requirements for the granting of the relief sought and its wanton disregard of the rules as evidenced by the filing of the notice of opposition out of time ought not to be condoned. It was further averred that the first respondent had approached the present matter as though upliftment of bar and condonation were there for the mere asking simply because it filed an irregular pleading.

[13] The first respondent averred that the physical service of the application was out of an abundance of the caution and the *dies induciae* began to run from 10 October 2025 when service of the main application was acknowledged. Efforts made by the applicant to be linked were done after working hours at the court's registry offices. At any rate, these were only made well after the *dies* had expired.

[14] The first respondent also averred that the applicant had no prospects of success. The applicant only alleged good prospects of success without attaching the irregular notice of opposition. Its arguments were just bare and unsubstantiated averments. The first respondent further averred that the failure to adequately address the prospects of success was a serious omission by the applicant which militated against the granting of the application.

[15] It was also averred that an application stands or falls by its founding affidavit. The failure to address the prospects of success was a ground for dismissing the application on its own. The applicant's default was wilful since the applicant's counsel, Mr *Mugabe* was aware that the *dies* lapsed on 24 October 2025 being the day when he signed and dated the applicant's notice of opposition. There was no explanation as to why the notice of opposition was signed and dated on 24 October 2025 and the founding affidavit was only signed on 27 October 2025.

[16] The first respondent denied the averment that there would not be any prejudice if the application was granted. The first respondent was being forced to assert its clear rights and

the applicant was raising baseless defences that failed to appreciate the issue complained of by the first respondent. The alleged prejudice to be suffered by the applicant were merely consequences of its infringement of legislative provisions regarding the naming of companies. Had the applicant agreed to solve the matter amicably it would have avoided the penalty which was merely aimed at encouraging compliance.

The Submissions

[17] At the commencement of oral submissions, *Mr Heally* for the first respondent abandoned the preliminary point raised in the opposing affidavit and opted to proceed with arguments on the merits.

[18] *Mr Mugabe* appearing for the applicant submitted that the factors to be considered in an application of this nature were the degree of delay, explanation for the default, prospects of success on the merits and prejudice to either party if the application was granted or declined. The factors had to be weighed holistically and not individually. No single factor was determinative. Counsel further submitted that the bar did not extinguish the right to oppose the matter, but it merely suspended such right.

[19] *Mr Mugabe* submitted that the degree of delay was minimal since it was only 4 days. It could rank as one of the shortest delays in local jurisdiction. The late filing of the opposition was caused by the ambiguity of the dual system, that is the electronic service and the physical service. There was no communication by the applicants on which type of service they were going to rely on. The electronic service was made done on 10 June 2025, and the physical service on 13 June 2025. The irregular opposition was issued and filed on 28 October 2025 when access to the IECMS was granted.

[20] It was further submitted that the associate in the law firm had received physical service while the partner had received the electronic service. The computation of time was therefore different. The conduct of the applicant admitted of no intention to delay. There was therefore no wilful default on the part of the applicant.

[21] *Mr Mugabe* also submitted that the prospects of success on the merits were sound. Counsel conceded that the prospects of success were not addressed in the application to avoid pleading the law. Be that as it may, it was submitted that the first respondent did not have *locus standi* in the main matter. It was averred that the first respondent had failed to demonstrate that it was an interested person for the purposes of s 25 of the COBE.

[22] *Mr Mugabe* also accused the first respondent of forum shopping. This was because the claim was initially grounded on a trademark infringement, but there was an about turn with

the applicant claiming relief under the COBE. The applicant could not be permitted to carry out forum shopping. For those reasons, counsel argued that *the* applicant carried strong prospects of success on the points of law.

[23] In response, *Mr Heally* for the first respondent argued that the applicant had failed to satisfy the requirements for the kind of application before the court. No explanation was given as to why a document signed on 24 October 2025 was filed on the 28th of October 2025. Meaningful action was only taken after the *dies* had expired.

[24] *Mr Heally* submitted that the *bona fides* of the application were not related to in the absence of a supporting affidavit from the applicant itself. It was further submitted that the prospects of success were not demonstrated. They were one of the primary considerations in an application of this nature. There was no reference to the proposed defence. The court was being asked to refer to preliminary points that were never pleaded. The applicant was expected to set out the basis upon which it was being averred that it had an arguable defence.

[25] It was further submitted that the legal submissions made by the applicant's counsel were intended to cure omissions in the opposing affidavit. These were not evidence. The court required the applicant to plead material facts, from which it could be able to exercise its discretion.

The analysis

[26] An application for condonation serves as a procedural step inviting the court to exercise its discretion to condone non-compliance with its rules. The applicant bears the burden of establishing good cause, which entails providing a reasonable and credible explanation for the delay or non-compliance. This explanation must demonstrate that the non-compliance was not due to wilful disregard of the rules and that the extent of the delay or non-compliance was not inordinate. The factors to be considered by the court in such applications was outlined by BHUNU JA in *Mzite* v *Damafalls Investment (Pvt) Ltd & Anor* SC 21/18 where he stated that:

> "The requirements for the application of this nature to succeed are well known as outlined in the case of Kombayi v Berkout 1988 (1) ZLR 53 (S). These are:
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> 1. The extent of the delay;
> 2. The reasonableness of the explanation for the delay; and
> 3. The prospects of success on appeal."

[27] The applicant submitted that the delay in filing the opposing affidavit in the main matter was four days and as soon as it was made aware of the operative bar, it sought to rectify the impropriety. The extent of the delay was therefore not inordinate.

[28]A delay of four days is relatively short and falls well within what the courts have, in appropriate circumstances, regarded as excusable, particularly where a litigant promptly moves to regularise its position. In applications for condonation, the length of the delay is a material consideration. The shorter the delay, the more readily the court may be inclined to excuse the non-compliance, provided a reasonable explanation is furnished and the prospects of success are sound. In the present matter, the delay was not excessive, and the explanation advanced was reasonable.

[29] The applicant's troubles do not just end with a reasonable explanation for the delay. It must go further and demonstrate that its prospects of success in the main matter are sound. In the instant case, condonation was sought in the context of the applicant's failure to file its opposing papers in the main application timeously. It followed that in addition to providing an explanation for non compliance with the rules, the applicant was required to demonstrate in the founding affidavit, the nature of its defence to the main application in order to invite the court to interrogate its prospects of success in that matter. In *Essop v S* (2014) ZASCA 114, the court had this to say about prospects of success:

> "What the test of reasonable prospects of success postulates is a dispassionate decision, based on the facts and the law, that a court of appeal could reasonably arrive at a conclusion different to that of the trial court. In order to succeed, therefore, the appellant must convince this Court on proper grounds that he has prospects of success on appeal and that those prospects are not remote, but have a realistic chance of succeeding. More is required to be established than that there is a mere possibility of success, that the case is arguable on appeal or that the case cannot be categorised as hopeless. There must, in other words, be a sound, rational basis for the conclusion that there are prospects of success on appeal."

[30] Although the above views were expressed in the context of an appeal, they apply with equal force in an application of the nature before the court. It is settled law that an applicant's case stands or falls on the founding affidavit. See *Fuyana v Moyo* SC 54-06, *Muchini v Adams & Ors* SC 47-13 and *Austerlands (Pvt) v Trade and Investment Bank Ltd & Ors* SC 80-06.

[31] Prospects of success are an integral part of an application for condonation. For that reason, they must be pleaded in the founding affidavit. In its founding affidavit the applicant did not demonstrate its prospects of success in the main matter. The applicant just stated that it had strong prospects of success. In his submissions, while conceding that the founding affidavit did not relate to prospects of success, counsel for the applicant sought to explain the omission by alleging that he was avoiding the likelihood of pleading the law in an affidavit. That submission is with respect, devoid of merit.

[32] The need to set out prospects of success has been the subject of legal discourse in superior courts in this jurisdiction on countless occasions. In *Doves Funeral Assurance (Private) Limited v Harare Motorways (Private) Limited & 4 Ors* SC 64/23 at p 10 of the judgment, the court reiterated the position of the law as follows:

> "The applicant ought to have set out that it has good prospects of success, in relation to both condonation and the reinstatement of appeal in its founding affidavit. It is a common principle that an application stands or falls on the averments made in the founding affidavit. This Court in *Unki Mines (Pvt) Ltd v Dohne Construction (Pvt) Ltd* SC 18/23 re-stated the position thus:
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> > "It is trite law that an application stands or falls on the averments made in the founding affidavit. According to *Herbstein & van Winsen* the Civil Practice of the Superior Courts in South Africa 3rd ed p. 80 the learned authors state as follows:
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> > > 'The general rule, however, which has been laid down repeatedly is that an applicant must stand or fall by his founding affidavit and the facts alleged therein, and that although sometimes it is permissible to supplement the allegations contained in that affidavit, still the main foundation of the application is the allegation of facts stated therein, because these are the facts which the respondent is called upon either to affirm or deny. If the applicant merely sets out a skeleton case in his supporting affidavits any fortifying paragraphs in his replying affidavits will be struck out'."

[33] The applicant sought to fortify its case on prospects of success through oral submissions by its counsel. That was legally impermissible. Prospects of success encompass the applicant's defence to the merits of the main application. They are not just contentions of law as the applicant's counsel wanted to portray them. In their absence, the court could not be invited to exercise its discretion to grant condonation. The applicant did not plead any facts upon which this court could assess whether there were reasonable prospects of success in the principal matter. This omission was fatal.

[34] Having acknowledged the omission, the applicant's counsel sought during oral submissions, to persuade the court that the application nevertheless enjoyed good prospects of success. Such an approach is impermissible. Oral submissions are intended to clarify and amplify matters already pleaded. They are not an instrument which can be conveniently used to remedy deficiencies in the founding affidavit. In motion proceedings, the affidavits are the only avenue through which a litigant's case must be pleaded. All material factual and evidentiary averments underpinning the applicant's cause of action must be set out therein.

[35] The applicant's failure to address the issue of prospects of success in its founding affidavit was fatal. It was inexcusable. Prospects of success are one of the foundational pillars of an application for condonation which triggers the exercise of discretion by the court. The mere fact that the applicant had proffered a reasonable explanation for its failure to comply

with rules of court was not on its own sufficient to persuade the court to condone its tardiness without the concomitant reference to the prospects of success.

[36] It was for the above reasons that the court dismissed the application for condonation and upliftment of the bar with a concomitant order of costs on the ordinary scale.

MUSITHU J……

Tafadzwa Ralph Mugabe/ Legal Counsel, applicant legal practitioners.
Wintertons, first respondent's legal practitioners